

Anmol Laghu Udyog v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 6 March 2018 · WRIT - C No. 6092 of 2018 · **Writ disposed of; appeal, if filed within two weeks, to be decided on merits.**

HEADNOTE

Where amounts under a final assessment have already been deposited and a statutory appeal lies, a writ challenging the assessment notice and consequential fixed-charge bills will not be decided on merits. Disputed facts as to Supply Code procedure, theft labelling, levy of fixed charges after disconnection, and whether representation and personal hearing were given, are for the appellate authority if appeal is filed within the time granted by the Court.

FACTUAL SUMMARY

Anmol Laghu Udyog, holder of connection No. 2401/111626, sought quashing of a 31 January 2017 notice and 9–10 March 2017 fixed-charge bills of Dakshinanchal Vidyut Vitran Nigam, and refund of Rs.6,04,696 realised on 4 February 2017 and Rs.16,66,761.88 recovered as fixed charges, with 18% interest. It alleged a valid connection, not theft, despite a theft-labelled notice, skipped Supply Code procedure, and fixed charges even after disconnection. The licensee said assessment covered only the connected period and a statutory appeal lay. The assessed amounts had already been deposited.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ-versus-statutory-appeal-against-assessment

HOLDING

A writ petition challenging a final assessment notice and consequential fixed-charge bills will not be decided on merits where a statutory appeal lies. Whether Supply Code procedure was followed, whether the case was theft, whether fixed charges were levied after disconnection, and whether representation and personal hearing were given, are for the appellate authority. If appeal is preferred within two weeks of the order, that authority shall consider it on merits and dispose of it expeditiously in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY SUPPLY CODE 2005 PROCEDURE WAS FOLLOWED BEFORE THE DEMAND

¶ 1

NOT DECIDED — WHETHER THE CONNECTION WAS A THEFT CASE AND WHETHER FIXED CHARGES WERE LEVIABLE FOR THE DISCONNECTED PERIOD

¶ 1

NOT DECIDED — WHETHER THE CONSUMER'S REPRESENTATION WAS CONSIDERED AND PERSONAL HEARING GIVEN BEFORE FINAL ASSESSMENT

Left to the appellate authority if appeal is filed within two weeks. ¶ 1